

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 21, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, (via Zoom), Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Cook, and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #20 was removed from the Consent Agenda. Upon request by Mr. Johnson, and pursuant to support received by Dr. Aldrich and Mr. Cook, item #21 was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who declared a conflict due to a business affiliation with agenda item #18.

[CA] Minutes from Regular Meeting of the Governing Body on December 11, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing regarding the required sale of real property and related equipment in Swan Ranch Industrial Park to Granite Peak Development Limited Partnership upon a finding of beneficial economic development. Public comment was made by Joe Stephenson, Granite Peak Development, Limited Partnership. Comment was made by the following member of the governing body: Mayor Collins. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE – 3rd READING – Amending subsection 6.7.5.b of the Unified Development Code (UDC), changing building façade design requirements to reduce required windows on urban loft multifamily residential and mixed-use residential development. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Cook moved to postpone to January 8, 2024, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson.

ORDINANCE – 3rd READING – Amending subsection 5.1.5 of the Unified Development Code (UDC), removing minimum lot area requirements for detached dwellings, semi-attached dwellings, attached dwellings, and multi-dwelling buildings. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on third and final reading, seconded Mr. Johnson. Motion carried. Voting “yes” – all members of the governing

body with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by Jason Stephen, Gateway Construction, Brenda Birkle, My Front Door, Sam Weinstein, Southeast Wyoming Builders Association and Eric Adams, Gateway Construction. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#4535)

ORDINANCE – 3rd READING – Amending subsection 5.1.5 of the Unified Development Code (UDC), removing density requirements for multi-dwelling buildings. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook, Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Jason Stephen, Gateway Construction, Brenda Birkle, My Front Door, Ansley Mouw, Winters Griffith Architects, Sam Weinstein, Southeast Wyoming Builders Association, Wendy Volk, #1 Properties and Eric Adams, Gateway Construction. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Segrave. (#4536)

ORDINANCE – 3rd READING – Amending subsection 6.2.4 of the Unified Development Code (UDC), amending Table 6-2, required automobile parking for multi-family development. Mr. Cook moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Jason Stephen, Gateway Construction, Brenda Birkle, My Front Door, Ansley Mouw, Winters Griffith Architects, Sam Weinstein, Southeast Wyoming Builders Association, Wendy Volk, #1 Properties and Eric Adams, Gateway Construction. (#4537)

ORDINANCE –2nd READING – Amending Title 6, Animals, of the Municipal Code of the City of Cheyenne, Wyoming, regarding the registration, control, impoundment and general care of animals and birds within the city. Mr. Cook moved to approve on second reading, seconded by Mr. Roybal. Mr. Cook moved to postpone to January 8, 2024, seconded by Mr. Esquibel. Motion to postpone carried. Voting “yes”- all members of the governing body. Comments were made by the following members of the governing body: Mr. Johnson and Mr. Laybourn.

ORDINANCE –2nd READING – Amending Ordinance No. 4520 Defining the Terms and Conditions of Employment for Sworn Officers of the Cheyenne Police Department for Fiscal Year 2023-2024. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” - all members of the governing body.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located east of Polk Avenue and north of and adjacent to East Pershing Boulevard. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” - all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR Agricultural Residential for land annexed to the City of Cheyenne located east of Polk Avenue and north of and adjacent to East Pershing Boulevard. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” - all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AR Agricultural Residential to LI Light Industrial for land located east of Polk Avenue and north of and adjacent to East Pershing Boulevard. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” - all members of the governing body.

ORDINANCE –2nd READING – Amending Subsections 6.6.3.b.3, 6.7.5.c, and 6.9.3.e of the Unified Development Code (UDC), changing the building façade design requirements for multifamily residential development (Reconsidered from December 11, 2023). Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated December 18, 2023, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” - all members of the governing body with the exception of Dr. Aldrich, Mr. Cook and Mr. Roybal voting “no”. Main motion as amended by substitute carried. Voting “yes” - all members of the governing body with the exception of Dr. Aldrich voting “no”.

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S. §§16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#6376)

[CA] RESOLUTION – Designating local banks as depositories for municipal funds. Motion (per Consent Agenda) carried. (#6377)

RESOLUTION – Expressing the will of the Governing Body directing the Mayor to hire a Special Projects Manager to assist the City of Cheyenne in managing and coordinating 6th Penny Tax projects and other city project priorities as directed by the Mayor. Mr. White moved to adopt, seconded by Mr. Johnson. Mr. White moved to amend by substitute dated December 13, 2023, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” - all members of the governing body with the exception of Dr. Aldrich voting “no”. Main motion as amended by substitute carried. Voting “yes” - all members of the governing body with the exception of Dr. Rinne voting “no”. Comments were made by the following members of the Governing Body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal, Mr. Segrave and Mr. White. (#6378)

RESOLUTION – In accordance with Section 2D of the second amended and restated Project Development and Administration Agreement between the City of Cheyenne, the Cheyenne-Laramie County Corporation for Economic Development and Granite Peak Development Limited Partnership, and pursuant to W.S. §15-1-112(b), authorizing the sale of the rails, ties and related rail equipment in the Swan Ranch Industrial Park to Granite Peak Development Limited Partnership upon determining that the sale benefits the economic development of the community. Mr. White moved to adopt, seconded by Mr. Roybal. Motion

carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mayor Collins. (#6379)

RESOLUTION – Authorizing submission of the Capital Construction Loan application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the construction of water, sewer and road infrastructure to support housing for F.E. Warren Air Force Base and for economic development. Mr. White moved to adopt, seconded by Mr. Johnson. Motion carried. Voting “yes” - all members of the governing body. Public comment was made by: Rob Graham, Coldwell Banker, Dale Steenbergen, President/CEO, Greater Cheyenne Chamber of Commerce, Wendy Volk, #1 Properties, Brenda Birkle, My Front Door and Sam Weinstein. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson and Mr. Roybal. (#6380)

[CA] RESOLUTION – Authorizing the Mayor to execute a Settlement Agreement with Rodney and Joyce Stone and Dean and Jayne Fertig to resolve a lawsuit regarding increased flooding following the development of the Thomas Heights Subdivision -- referred to Finance Committee. (Sponsor – Mr. White)

[CA] Professional Services Contract between the City of Cheyenne and Lance & Hall, LLP for public defense services (General Fund). Motion (per Consent Agenda) carried. (#7884)

[CA] Purchase and Sale Agreement between the City of Cheyenne and Taurus Holdings, LLC for approximately 2.10 acres of vacant land west of Snyder Avenue at 7th Street and more particularly described in Exhibit A (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$155,000.00). (#7885)

[CA] Contract Modification #1 to Contract #7775 between the City of Cheyenne and Sunrise Engineering for additional design services for the 7th Street Drainage and Access Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$13,300.00). (#7775)

[CA] Contract Modification #1 to Contract #7561 between the City of Cheyenne and HDR Engineering, Inc. for additional engineering services related to the Pedestrian Traffic Safety Study and HAWK System Design Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$10,420.00). (#7561)

[CA] Contract Modification #1 to Contract #7782 between the City of Cheyenne and DHM Design Corporation, for utility locating services for the Reed Avenue Rail Corridor Design Project (2017 Specific Purpose Option Tax Fund) -- referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Meridian Rapid Defense Group LLC, for the purchase of an Anti-Vehicle Barrier and Trailer System for the Community Recreation and Events Department (2019-2022 Optional 1% Sales Tax Fund, 2021 Specific Purpose Option Tax Fund and Wyoming Department of Homeland Security). Motion (per Consent Agenda) carried (in an amount not to exceed \$100,059.34).

[CA] Consideration to Purchase between the City of Cheyenne and Axon Enterprise, Inc., for the purchase of Axon Body 4, Body Worn Video Cameras for the City of Cheyenne Police Department (General Fund Reserves and Future Specific Purpose Option Tax Fund Ballot). Motion (per Consent Agenda) carried (in an amount not to exceed \$800,797.50).

[CA] Request to extend the time period in which Wyoming Horse Racing LLC d/b/a Horse Palace has to become operational for an additional year for their retail license, located at 5640 High Plains Road, Cheyenne, Wyoming -- referred to Finance Committee.

Appointment of Anthony Laird and Darrell Hibbens to the Planning Commission; and Mark Moody to the Board of Adjustment. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” - all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Reappointments of James W. Hearne to the City/County Joint Powers Board; Darin Westby to the Cheyenne Frontier Days Joint Powers Board; Donald Pierson to the Police Civil Service Commission; Mark C. Hardee to the Fire Civil Service Commission; Joe Patterson and Chandler Carroll to the Contractor Licensing Board; David Benner, Amber Conwell and Elizabeth Bales to the Cheyenne Historic Preservation Board; Kristian Richardson and Jared Dixon to the Mayor’s Council for People with Disabilities; Gabriel Herrera and William Casey to the Building Code Board of Appeals; Dustin Brown and Curtis Clabaugh to the Board of Adjustment; Pete Laybourn to the Downtown Development Board; and Bryan Thomas to the Planning Commission. Mayor Collins announced Mr. Laybourn requested his name be withdrawn for reappointment to the Downtown Development Board. Mr. White moved to approve the reappointments with the exception of Mr. Laybourn’s reappointment, seconded by Mr. Esquibel. Motion carried. Voting “yes” - all members of the governing body with the exception of Mr. Johnson voting “no” and Mayor Collins who did not vote (mayoral appointments).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held January 8, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 9.39 acres of land at 5419 Ridge road (located northeast of the intersection of Douglas St. and Ridge Rd.)

Announcement was made of a Public Hearing to be held January 8, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 29.61 acres of land east of Converse Avenue and south of Storey Boulevard.

Announcement was made that a Calcutta benefitting the Make-A-Wish, Wyoming, will be held February 2 – February 3, 2024 at the Red Lion Hotel and Conference Center, 204 W. Fox Farm Road.

Announcement was made that due to the New Years Day holiday on Monday, January 1, 2024, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at Noon on Tuesday, January 2, 2024 and Public Services Committee will meet at Noon on Wednesday, January 3, 2024. Both meetings will be held at 2101 O’Neil Avenue, Room 104 and via electronic conference meeting.

The following member of the governing body made comment under other business: Mr. Laybourn.

Mr. Johnson moved to meet in executive session Pursuant to Wyoming Statutes §16-4-405(a)(vii), seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Stefanie Boster, City Attorney; Charles Bloom, Planning & Development Director; Kris Jones, City Clerk; Seth Lloyd, Planning & Development; Brenda Moureaux, Deputy City Treasurer and Jason Sanchez, Community Recreation and Events Director.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:35 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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